

DEBAJYOTI CHAKRABORTY

AREAS OF DISPUTE
Left, a patch of slum in the Beleghata locality of Kolkata

advocate Bikash Ranjan Bhattacharya, who represents the slum-dwellers, accuses the Corporation—he himself headed it as Kolkata mayor between 2005 and 2010—of facilitating the "illegal" eviction of the residents.

The dispute at Ram Mohan Mullick Garden Lane is not an isolated one. Many such tenancy disputes are pending before the courts—including the Calcutta High Court and the lower courts—as well as the Thika Controller, the custodian of the Thika Tenancy Act. Now, these cases are being dug up by the Paschim Banga Basti Unnayan Samiti (West Bengal Slum Development Federation), a Left-leaning organisation. The state government's decision to rename slums as a whole as *uttaran* at the behest of Mamata comes right in the middle of this.

Sukharanjan Dey, secretary of the federation, dismisses the name-change as an eyewash to conceal Mamata's intention to evacuate slum-dwellers so that large parcels of land could be handed over to builders. He cites an instance of how the government enacted a legislation "at the cost of slum-dwellers". In 2014, an amendment was made to the West Bengal Thika Tenancy (Acquisition and Regulation) Rules, 2004, abrogating a key clause that allowed a *thika* tenant to register his or her rights on a piece of land even after the deadline of 240 days "from the date of commencement of the Act" had expired. "The original law dates back to 1981. For several reasons, many people could not file their claims. This clause helped them," Dey says. He alleges the state government got rid of this clause so that "real estate sharks" could easily evacuate slums. "All those people who couldn't acquire tenancy rights earlier have not been able to do so since 2014, making it easier for developers to take away their land," Dey alleges.

Another legal provision, known as the West Bengal Land Conversion (Leasehold land to Freehold) Scheme, 2022, is also against the interests of slum-dwellers, the federation members claim. This scheme allows residential or commercial users to convert their leasehold land into freehold—thus gaining unrestricted and absolute right over it—in exchange of a certain fee. Members of the federation fear that this scheme will ultimately lead to the eviction of downtrodden families who travel to cities in search of livelihood and build their makeshift homes on the unused land beside commercial/ residential buildings. "Once users get full freehold rights over the land, it is only imminent that the poor people will be marked as 'occupiers' and get evacuated," says Debasish Chakraborty, another federation member.

Phone calls and messages to Mayor Hakim and the principal secretary of the urban development and municipal affairs department, Khalil Ahmed, went unanswered. However, Jay Prakash Majumdar, a Trinamool Congress spokesperson, denies the allegations. He calls the renaming part of Mamata's attempt to obliterate the "social stigma" attached to the word *basti*. "It is our chief minister who first provided slum-dwellers dignity by arranging for them drinking water and electricity. The renaming is a continuation of those attempts," Majumdar adds. The federation, meanwhile, is organising an anti-eviction conference in Kolkata on December 12, where they claim they will 'unmask' the truth. As for the residents, *basti* or *uttaran* is an abstract debate. They call it home. ■